
2:00 PM **LINE 4**

25-CIV-09498

TEERUN M. TEYMOORIAN VS. TESLA, INC.

TEERUN M. TEYMOORIAN
TESLA, INC., A TEXAS CORPORATION

MICHAEL H ROSENSTEIN
ALI AMERIPOUR

DEFENDANT TESLA, INC.'S MOTION TO COMPEL BINDING ARBITRATION

TENTATIVE RULING:

Defendant Tesla Inc.'s unopposed motion to compel plaintiff Teerun M. Teymoorian to arbitrate the claims asserted against defendant in plaintiff's complaint filed December 3, 2025 is **GRANTED**.

Defendant's request to stay the proceedings pending resolution of arbitration is **GRANTED**. (Code Civ. Proc., § 1281.4.) Defendant's request for judicial notice of the complaint is **GRANTED**. (Evid. Code, § 452, subd. (d).)

A. Background

This is a Song-Beverly Act action regarding plaintiff's lease of a 2023 Tesla Model Y on September 9, 2023. (Declaration of Raymond Kim, ¶ 3, exh. 1.) The complaint alleges the car had serious electrical and electronic component defects, interior and exterior defects, and HVAC defects. Defendant filed this motion for an order (i) compelling plaintiff Teerun M. Teymoorian to arbitrate the claims asserted in the complaint in accordance with their arbitration agreement with Tesla; and (ii) staying this action pending the outcome of arbitration. Plaintiff has not filed an opposition brief.

B. Legal Standard

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.

(Code Civ. Proc., § 1281.2)

"California has a strong public policy in favor of arbitration . . . 'This strong policy has resulted in the general rule that arbitration should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute.'"

(*Coast Plaza Doctors Hospital v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 686, internal quotations omitted.)

“The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) “This initial burden may be met with a copy of the arbitration agreement.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group, June 2025 Update) ¶ 9:407.5.) The court must then determine whether the parties actually agreed to arbitrate the dispute. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.) The court adheres to general principles of California contract law in making this determination. (*Ibid.*) The court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc. § 1281.2; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219.)

C. Discussion

Here, the Declaration of Raymond Kim, a Business Resolution Manager at Tesla, Inc., set out the language of the arbitration clause in the parties’ lease agreement. (Kim Decl. ¶ 8, and exh. 1 [lease agreement].) The arbitration clause is clearly titled “Agreement to Arbitrate” in bold face type and emphasized by a border around the entire clause. (See *id.*, exh. 1, ¶ 33.) The pertinent text reads:

33. Agreement to Arbitrate. Please carefully read this provision, which applies to any dispute between you and Tesla, Inc. and its affiliates (together “Tesla”).

If you have a concern or dispute, please send a written notice describing it and your desired resolution to resolutions@tesla.com.

If not resolved within 60 days, you agree that any dispute arising out of or relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (“AAA”) under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products. You further agree that any disputes related to the arbitrability of your claims will be decided by the court rather than an arbitrator, notwithstanding AAA rules to the contrary.

To initiate the arbitration, you will pay the filing fee directly to the AAA and we will pay all the subsequent AAA fees for the arbitration, except you are responsible for your own attorney, expert, and other witness fees and costs unless otherwise provided by law. If you prevail on any claim, we will reimburse you your filing fee.

The arbitration will be held in the city or county of your residence. To learn more about the Rules and how to begin an arbitration, you may call any AAA office or go to www.adr.org.

The arbitrator may only resolve disputes between you and Tesla and may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others purchasing or leasing Tesla vehicles. In other words, you and Tesla may bring claims against the other only in your or its individual capacity and not as a plaintiff or class member in any class or representative action. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy (such as injunctive or declaratory relief), then that claim or remedy (and only that claim or remedy) shall be severed and must be brought in court and any other claims must be arbitrated.

If you prefer, you may instead take an individual dispute to small claims court.

You may opt out of arbitration within 30 days after signing this Agreement by sending a letter to: Tesla, Inc.; P.O. Box 15430; Fremont, CA 94539-7970, stating your name, Order Number or Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance contract.

(Kim Decl., exh. 1, ¶ 33, emphasis added.)

Mr. Kim's declaration states Tesla did not receive an opt-out letter from plaintiff in accordance with the opt out portion of the arbitration clause. (Kim Decl., ¶ 9.) Mr. Kim also searched Tesla's opt-out [records] but did not find a letter from plaintiff. (*Ibid.*) In his declaration, defendant's counsel Ali Ameripour states that his office asked plaintiff to stipulate to arbitration pursuant to this clause on March 19, 2026 but plaintiff had not yet agreed to do so. Notably, plaintiff did not oppose this motion.

A review of the agreement's terms and the declarations filed in support, demonstrates that defendant has met its burden to prove the existence of a valid arbitration agreement by a preponderance of the evidence and plaintiff has not carried their burden to oppose the motion. Accordingly, pursuant to the unambiguous language of Code of Civil Procedure, section 1281.2 the defendant's petition is **GRANTED**.

The parties are ordered to arbitration, and the matter is stayed pending the resolution of the arbitration proceedings. (Code Civ. Proc., § 1281.4.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in

part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 5**

25-CLJ-01541

TOKUKO SYLVESTER VS MARC KUNZE, ET AL.

TOKUKO SYLVESTER
MARC KUNZE

PRO PER
CHARLES J. SMITH

DEFENDANTS' DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

For the reasons stated below, defendants Marc and Amanda Kunze's Demurrer to plaintiff Tokuko Sylvester's May 4, 2026 Second Amended Complaint (SAC) is **SUSTAINED WITHOUT LEAVE TO AMEND** as to all asserted claims. (Code Civ. Proc. § 430.10, subd. (e).)

Although leave to amend is liberally allowed, such leave should not be granted where, in all probability, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*A.J. Fistes Corp. v. GL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687 (*A.J. Fistes*).)

If plaintiff seeks leave to amend, she should properly contest the tentative ruling and appear at the hearing (in person or via Zoom) to state facts that provide a reasonable possibility that she can state a cause of action as to the violations alleged.

A. Background

As alleged in her SAC, plaintiff Tokuko Sylvester is the former landlord of defendants Marc and Amanda Kunze. For about three years, defendants leased a rental unit from plaintiff in Pacifica, California. Defendants vacated the property on May 31, 2021. Plaintiff contends that after defendants moved out, she discovered that they had damaged several items in the rental unit, which she repaired or replaced at some expense. Plaintiff filed her initial Complaint on February 27, 2025; a First Amended Complaint on March 11, 2025; and the operative Second Amended Complaint on May 4, 2026. The SAC alleges that defendants damaged several items and appliances in the rental unit, including a dishwasher, a kitchen faucet, and a garbage disposal.

The court previously granted defendants' motion for judgment on the pleadings which was directed to plaintiff's FAC. (April 15, 2026 Order.) Plaintiff's SAC asserts the following causes of action: (1) intentional infliction of emotional distress (IIED); (2) fraud; (3) elder abuse; (4) negligence; and (5) "neglect." Defendants again demur to all asserted claims.

B. Legal standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these
